



BLOCKWARE MUTUAL CONFIDENTIALITY AND NONDISCLOSURE AGREEMENT

This Mutual Confidentiality and Non-Disclosure Agreement (this “**Agreement**”) is entered into between _____ (the “Undersigned”), on behalf of and for the benefit of itself and its employees, officers, owners, managers, agents and assigns, and Blockware Solutions LLC, a Delaware limited liability company (“**Blockware**”) (Undersigned and Blockware, referred to herein individually as “**Party**” and collectively as “**Parties**”) as of the latest date noted below (the “**Effective Date**”).

WHEREAS, in order to discuss and act with respect to mutual interests regarding each Party’s products, services, and/or other business activities, the Parties may desire to obtain and examine certain proprietary information regarding each Party’s respective businesses and interests, including, without limitation, trade secrets or other confidential information; and

WHEREAS, the Parties wish to protect the confidentiality of the information to be disclosed solely and exclusively for use in evaluating and/or pursuing a business relationship between the Undersigned and Blockware (the “**Permitted Use**”);

NOW, THEREFORE, in consideration of the Parties’ desires and the mutual covenants and agreements set forth herein and of other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereto, intending to be legally bound, hereby agree as follows:

1. GENERAL

- 1.1. This Agreement will govern the conditions under which one of the Parties discloses and one of the Parties receives information that the disclosing Party considers to be confidential or proprietary.

2. DEFINITIONS

- 2.1. “**Confidential Information**” means any and all technical and non-technical information provided by the Disclosing Party to the Recipient, including, without limitation, the whole or any portion of:
(a) business records or plans; financial statements; pricing, costs or discounts; (b) lists or records of suppliers, vendors, customers and /or their needs and requirements; (c) product specifications; inventions; formulas, methods or processes; (d) hardware and/or equipment configurations; operations and/or procedures; (e) trade secrets, know how, copyrights, or other intellectual property; (f) proprietary information relating to software and/or hardware; and (g) any other material or information the Disclosing Party gives to the Recipient for the purpose stated above, including any actual or potential market information, volumes or consumption and/or commercial supply data; and (h) all other information that the Recipient knew, or reasonably should have known, was the Confidential Information of the Disclosing Party. The Recipient may receive Confidential Information orally, visually, electronically or in writing.
- 2.2. The Party furnishing the Confidential Information to the Recipient from time to time, as the case may be, pursuant to this Agreement, shall be herein referred to as a “**Disclosing Party**”.
- 2.3. The Party receiving the Confidential Information from the Disclosing Party from time to time, as the case may be, pursuant to this Agreement, shall herein be referred to as, individually, a “**Recipient**”, and collectively, the “**Recipients**”.
- 2.4. For purposes of this Agreement, the definitions of the “**Disclosing Party**” and the “**Recipient**” shall be deemed to include any existing and future affiliates, subsidiaries, business units and/or partnerships thereof; provided, however, that any such affiliate, subsidiary, business unit, or partnership that receives Confidential Information shall be bound by confidentiality obligations no less restrictive than those set forth herein, and the Party disclosing Confidential Information to any such entity shall remain fully liable for any breach by such entity.

3. TREATMENT OF CONFIDENTIAL INFORMATION.

- 3.1. Subject to the provisions of Sections 3.2 and 3.3. hereof, the Recipient agrees that at all times and notwithstanding any termination or expiration of this Agreement, it will hold in strict confidence and not disclose to any third party any of the Disclosing Party's Confidential Information, except as otherwise approved in writing by the Disclosing Party and will use the Confidential Information for no purpose other than the Permitted Use. The Recipient will use the same standard of care to protect the Disclosing Party's Confidential Information as it uses to protect its own Confidential Information. In no event will that be less than a reasonable standard of care. The Recipient will limit access to the Confidential Information to only those of its employees or authorized representatives having a need to know (each, an "**Authorized Person**", and collectively, the "**Authorized Persons**") and who have signed confidentiality agreements containing, or are otherwise bound by, confidentiality obligations at least as restrictive as those contained herein.
- 3.2. The Recipient will not have any obligations under this Agreement with respect to a specific portion of the Confidential Information if the Recipient can demonstrate with competent evidence that such specific portion of the Confidential Information: (a) was generally available to the public or otherwise part of the public domain at the time it was disclosed to the Recipient; (b) becomes generally available to the public or otherwise part of the public domain subsequent to the time it was disclosed to the Recipient, through no fault of, or breach of this Agreement by, the Recipient or any Authorized Person; (c) was already in the possession of the Recipient, as evidenced by pre-existing written records and not subject to another obligation of secrecy to a third party; (d) was independently developed and discovered by the Recipient without reference to any Confidential Information disclosed by the Disclosing Party; or (e) is subsequently disclosed to the Recipient without restriction on its use or disclosure by a person other than the Disclosing Party without breach of any legal obligation to the Disclosing Party.
- 3.3. The Recipient agrees that it may not disclose the Disclosing Party's Confidential Information to any third party without in each instance securing the prior written consent of the Disclosing Party. Notwithstanding the above, the Recipient may disclose certain Confidential Information, without violating the obligations of this Agreement, to the extent such disclosure is required by a valid order of a court or other governmental body having jurisdiction or by applicable law or regulation, *provided that* the Recipient provides the Disclosing Party with reasonable prior written notice of such intended disclosure (to the extent not prohibited by applicable law) and makes a reasonable effort to obtain, or to assist the Disclosing Party in obtaining, a protective order preventing or limiting the disclosure and/or requiring that the Confidential Information so disclosed be used only for the purposes for which the law or regulation required, or for which the order was issued.
- 3.4. The Recipient will promptly notify the Disclosing Party in the event of any loss or unauthorized disclosure of any Confidential Information.
- 3.5. This Agreement does not obligate either Party to disclose or receive any Confidential Information, and nothing in this Agreement will be considered to grant either Party any license to the other Party's intellectual property or to guarantee any future business relationship.
- 3.6. The Recipient will not use the Disclosing Party's Confidential Information except for the purposes stated herein, and neither Party will disclose the existence of this Agreement or any information relating to it other than as provided in this Agreement.
- 3.7. Neither Party will use any name, trademark, service mark or logo of the other Party in any publicity, advertising or information which it distributes to the general public without the other Party's prior written consent. Notwithstanding the foregoing, either Party may, without the other Party's prior written consent, disclose the other Party's name as reasonably needed for such Party to conduct non-public financial activities or as may be required by applicable law.

- 3.8. Confidential Information is and shall remain the sole property of the Disclosing Party. The Recipient recognizes and agrees that nothing contained in this Agreement will be construed as granting any property rights, by license or otherwise, to any Confidential Information disclosed under this Agreement, or to any invention or any patent, copyright, trademark, or other intellectual property right that has issued or that may issue, based on such Confidential Information. The Recipient will not make, have made, use or sell for any purpose any product or other item using, incorporating or derived from any Confidential Information. Neither this Agreement nor the disclosure of any Confidential Information hereunder shall result in any obligation on the part of either Party to this Agreement to enter into any further agreement with the other, license any products or services to the other, or to require any Disclosing Party to disclose any particular Confidential Information. Nothing in this Agreement creates or shall be deemed to create any employment, joint venture, or agency between the Parties hereto.
- 3.9. Confidential Information will not be reproduced in any form except as required to accomplish the intent of this Agreement. Any reproduction of any Confidential Information will remain the property of the Disclosing Party and will contain any and all confidential or proprietary notices or legends that appear on the original, unless otherwise authorized in writing by the Disclosing Party.
- 3.10. THE DISCLOSING PARTY IS PROVIDING CONFIDENTIAL INFORMATION ON AN "AS IS" BASIS FOR USE BY THE RECIPIENT AT ITS OWN RISK. DISCLOSING PARTY, ON ITS OWN BEHALF, AND ON BEHALF OF THE DISCLOSING PARTY'S EXISTING AND FUTURE AFFILIATES, SUBSIDIARIES, BUSINESS UNITS AND/OR PARTNERSHIPS, DISCLAIMS ALL WARRANTIES, WHETHER EXPRESS, IMPLIED OR STATUTORY, INCLUDING WITHOUT LIMITATION ANY IMPLIED WARRANTIES OF TITLE, NON-INFRINGEMENT OF THIRD PARTY RIGHTS, MERCHANTABILITY, OR FITNESS FOR A PARTICULAR PURPOSE.

4. TERMINATION.

- 4.1. **Termination.** Either Party may terminate this Agreement after thirty (30) days written notice to the other Party, or immediately upon written notice in the event of a material breach by the other Party that remains uncured for ten (10) days following written notice thereof. Notwithstanding the foregoing, the Recipient's obligations under this Agreement will survive any expiration or termination of this Agreement for a period of five (5) years following the effective date of termination; provided, however, that obligations with respect to any Confidential Information that constitutes a trade secret under applicable law shall survive until such information ceases to constitute a trade secret through no fault of Recipient.
- 4.2. **Return of Documents.** Upon termination or expiration of this Agreement, or upon written request of the Disclosing Party, the Recipient will promptly return to the Disclosing Party all documents or tangible materials representing any of the Disclosing Party's Confidential Information and any copies thereof, and will not retain any Confidential Information in any form whatsoever; provided, however, that (a) legal counsel for the Recipient may retain one copy in a confidential file as evidence of the disclosures made by the Disclosing Party under this Agreement, and (b) the Recipient shall not be required to purge Confidential Information contained in electronic backup or archival systems maintained in the ordinary course of business, so long as such retained copies remain subject to the confidentiality obligations of this Agreement.

5. NON-SOLICITATION, NON-DISCLOSURE, NON-DISPARAGEMENT AND NON-CIRCUMVENTION

- 5.1. **Non-Solicitation.** Each Party agrees, during the term of this Agreement and for a period ending one (1) year after the expiration or termination of this Agreement, not to solicit the other Party's Contacts. For purposes hereof, "**Contacts**" shall mean a contact of the Disclosing Party with whom Recipient has been introduced for the purpose of conducting a mutually beneficial transaction as a direct result of the efforts of Disclosing Party; provided, however, "**Contact**" shall exclude any person or entity that Recipient had contact with prior to or outside of the introduction by Disclosing Party. "**Contact**" shall include a Contact's wholly-owned subsidiaries or parent

companies.

- 5.2. **Non-Disclosure.** Without the prior written consent of the other Party, each Party will not disclose to any person or entity: (a) that the Undersigned and Blockware are engaged in a business transaction or relationship; or (b) any of the terms, conditions, or other facts of this Agreement, including the existence or status thereof; provided, however, that either Party may disclose such information (i) to its professional advisors (including attorneys and accountants) who are bound by professional duties of confidentiality, (ii) as required by applicable law, regulation, or legal process, or (iii) to potential acquirers or investors in connection with due diligence, subject to such persons being bound by confidentiality obligations no less restrictive than those herein. The Parties' obligations of non-disclosure hereunder shall survive any expiration or termination under this Agreement for a period of five (5) years following such expiration or termination.
- 5.3. **Non-Disparagement.** Each Party agrees not to make any disparaging or false statements in written, oral, electronic, or any other form, directly or indirectly, relating to this Agreement or about the other Party or its business opportunities, employees, officers, directors, products, or services.
- 5.4. **Non-Circumvention.** Each Party agrees that, during the term of this Agreement and for a period of one (1) year thereafter, it shall not, directly or indirectly, circumvent, avoid, bypass, or obviate the other Party, or attempt to do so, in connection with any business opportunity, transaction, or relationship involving any pricing information, end customer, vendor, business partner, or other contact disclosed or introduced by the other Party in connection with this Agreement. Without limiting the foregoing, neither Party shall, directly or indirectly, solicit, transact with, contract with, accept business from, provide products or services to, or otherwise engage with any such end customer, vendor, business partner, or other contact for the purpose of avoiding, limiting, or excluding the other Party from any business dealing related thereto. Notwithstanding the foregoing, this Section 5.4 shall not apply to any relationship, contact, or business opportunity with respect to which the Party alleged to have circumvented can demonstrate by written documentation that such Party had a pre-existing relationship prior to the disclosure or introduction by the other Party.

6. MISCELLANEOUS

- 6.1. **Notice.** Any notices to be given hereunder (each, a "**Notice**") by either Party to the other may be effected by (i) personal delivery, (ii) electronic mail, or (iii) any nationally recognized overnight courier service. Notices given by personal delivery or overnight delivery shall be addressed to the Parties at the addresses set forth herein or such other address as any party hereto may otherwise specify in writing. Notices given by electronic mail shall be sent using the email addresses appearing in the signature blocks below. Notices delivered personally shall be deemed delivered as of actual delivery of same. Notices deposited with an overnight courier service will be deemed delivered on the next business day. Notices sent via electronic mail will be deemed delivered when receipt is confirmed by the receiving Party via return electronic mail.
- 6.2. **Representations.** The Parties have not made or relied upon any representations, understandings, or other agreements not specifically set forth in this Agreement.
- 6.3. **Entire Agreement.** This Agreement is the final, complete and exclusive agreement between the Parties with respect to its subject matter and supersedes all prior or contemporaneous agreements, communications and understandings, both oral and written, between the Parties with respect to its subject matter.
- 6.4. **Amendment.** No amendment or modification of this Agreement shall be valid unless the same is in writing and signed by the Parties hereto.
- 6.5. **Waiver.** No waiver of any provision of this Agreement shall be valid unless in writing and signed by

- the Party waiving its rights. The failure of any Party at any time to insist upon, or any delay by any Party at any time to insist upon, strict performance of any condition, promise, agreement or understanding set forth herein shall not be construed as a waiver or relinquishment of the right to insist upon strict performance of the same condition, promise, agreement or understanding at a future time.
- 6.6. **Severability.** If any provision of this Agreement is held invalid, illegal or unenforceable, that provision will be enforced to the maximum extent permitted by law, given the fundamental intentions of the Parties, and the remaining provisions of this Agreement will remain in full force and effect.
- 6.7. **Assignment.** Neither Party will assign this Agreement and its rights under this Agreement without the express prior written consent of the other Party provided, however, that either Party may, without consent, assign this Agreement: (i) to a successor entity in connection with a merger, acquisition, reorganization, or sale of all or substantially all of its assets or equity, provided such successor agrees in writing to assume the obligations hereunder; or (ii) to any affiliate of the assigning Party, provided the assigning Party remains jointly and severally liable for the performance of all obligations hereunder. Any attempted assignment, subcontract, delegation, or transfer in violation of the foregoing will be null and void.
- 6.8. **Governing Law and Arbitration.** This Agreement will be governed and construed in accordance with the laws of the State of Texas, without giving effect to any principles of conflict of laws that would lead to the application of the laws of another jurisdiction. Any dispute, claim, or controversy arising out of or relating to this Agreement, or the breach, termination, enforcement, interpretation, or validity thereof, shall be resolved exclusively by final and binding arbitration administered by the American Arbitration Association ("AAA") in accordance with its Commercial Arbitration Rules then in effect. The arbitration shall be conducted before a single arbitrator, and the seat and venue of the arbitration shall be Harris County, Texas. Judgment on the award rendered by the arbitrator may be entered in any court of competent jurisdiction. Notwithstanding the foregoing, either Party may seek injunctive or other equitable relief in accordance with Section 6.11 in any court of competent jurisdiction to prevent or restrain a breach of this Agreement pending the outcome of arbitration.
- 6.9. **Waiver of Jury Trial.** EACH OF THE PARTIES HEREBY IRREVOCABLY WAIVES ANY AND ALL RIGHT TO TRIAL BY JURY IN ANY ACTION, PROCEEDING, CLAIM OR COUNTERCLAIM, WHETHER IN CONTRACT OR TORT, AT LAW OR IN EQUITY, ARISING OUT OF OR IN ANY WAY RELATED TO THIS AGREEMENT OR THE TRANSACTIONS CONTEMPLATED HEREBY.
- 6.10. **Costs and Attorneys' Fees.** If any legal action or other proceeding is brought for a breach of this Agreement, the prevailing Party shall be entitled to recover its reasonable attorneys' fees and other costs incurred in bringing such action or proceeding, in addition to any other relief to which such Party may be entitled.
- 6.11. **Injunctive Relief.** Each Party hereby agrees that a breach of this Agreement by such Party will cause irreparable damage to the other Party for which recovery of damages would be inadequate, and that the non-breaching Party shall be entitled to obtain timely injunctive relief under this Agreement, as well as such further relief as may be granted by a court of competent jurisdiction, without the necessity of posting a bond or other security, which requirement is hereby expressly waived by the breaching Party.
- 6.12. **Construction.** This Agreement has been negotiated by the Parties hereto with the advice of independent counsel and is neither intended to be nor shall be construed against the Party who drafted it.
- 6.13. **No Third-Party Beneficiaries.** This Agreement is intended solely for the benefit of the Parties to this Agreement and no third party shall have any rights, direct or indirect, under this Agreement.
- 6.14. **Counterparts.** The Parties may sign this Agreement in separate counterparts and will accept a signed copy sent via facsimile or as a .pdf attachment to an e-mail transmission (electronic record),

which shall be considered delivery of an original signature and all of which taken together shall constitute one and the same instrument. A Party will not consider the other Party's request to execute original signature documents as unreasonable and will not unreasonably withhold consent to such a request.

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement as of the latest date written below.

BLOCKWARE SOLUTIONS LLC

SIGNATURE:

SIGNATURE:

NAME:

NAME: Megan Anderson

TITLE:

TITLE: Chief Executive Officer

DATE:

DATE:

ADDRESS:

ADDRESS: 675 Bering Drive, Suite 390
Houston, TX 77057

E-MAIL ADDRESS:

E-MAIL ADDRESS:
Manderson@blockwaresolutions.com